



U.S. Department
of Transportation

Research and
Special Programs
Administration

JUN 13 1997

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 11847

EXPIRATION DATE: May 1, 1999

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Energy and Environmental Technology Company
Southfield, Michigan
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of phosphorous contained in metal canisters in 55 gallon drums. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.188(a)(2) in that open head 55 gallon steel drums are not authorized.
5. BASIS: This exemption is based on the application of Energy and Environmental Technology Company dated February 14, 1997, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Phosphorus, white, under water	4.2	UN1381	I

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - (1) The inner packagings consists of metal canisters. Each metal canister may contain no more then 26 kilograms of phosphorous.

(2) The outer packaging consists of steel drums, 55 gallon or less, meeting the performance requirements for 1A2/X400/S. Each drum may contain no more than 4 canisters submerged in water and secured against movement by foam inserts.

8. SPECIAL PROVISIONS: Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle via private or contract carrier only.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.